IN THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS

UNITED STATES Appellee v. Airman (E-3) BRIAN D. HOWARD, USAF Appellant	)	**ANSWER TO ASSIGNMENTS OF ERROR** Panel No. 1 ACM 40478 (f rev) 29 October 2024

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TO THE HONORABLE, THE JUDGES OF THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS:

Issues Presented

I.
WHETHER [APPELLANT'S] DISOBEYING ORDERS AND DERELICTION OF DUTY CONVICTIONS ARE FACTUALLY INSUFFICIENT AND TWO OF HIS DERELICTION OF DUTY CONVICTIONS ARE LEGALLY INSUFFICIENT?

II.
WHETHER THE MILITARY JUDGE ERRED WHEN SHE REFUSED TO INSTRUCT ON LACK OF MENTAL RESPONSIBILITY?

III.
WHETHER THE MILITARY JUDGE ABUSED HER DISCRETION WHEN SHE DENIED CHALLENGES FOR CAUSE AGAINST TWO PANEL MEMBERS WHO QUESTIONED THE CENTRAL DEFENSE OF LACK OF MENTAL RESPONSIBILITY?

IV.
WHETHER THE RECORD OF TRIAL'S OMISSION OF COURT MEMBER SELECTION SHEETS REQUIRES RELIEF OR, AT A MINIMUM, REMAND FOR CORRECTION?

V.
WHETHER [APPELLANT] IS ENTITLED TO SENTENCE RELIEF BECAUSE OF THE 223-DAY DELAY BETWEEN ANNOUNCEMENT OF THE SENTENCE AND DOCKETING WITH THIS COURT.

VI.
WHETHER, AS APPLIED TO [APPELLANT], 18 U.S.C. § 922 IS UNCONSTITUTIONAL BECAUSE THE GOVERNMENT CANNOT DEMONSTRATE THAT BARRING HIS POSSESSION OF FIREARMS IS "CONSISTENT WITH THE NATION'S HISTORICAL TRADITION OF FIREARM REGULATION."

VII.
WHETHER [APPELLANT'S] ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY INSUFFICIENT.

Statement of the Case

The United States generally accepts Appellant's Statement of the Case. Additionally, Appellant faced the following charges and specifications at trial:

Article 89. The specification for Article 89 alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant lifted up a knife against Lt Col CT, his superior commissioned officer in command, who was then in execution of this office. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 858.)

Article 90. The specification for Article 90 alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant, having received a lawful command from Lt Col CT to pack his belongings and go to the Misawa Air Base Passenger Terminal, willfully disobeyed that command. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 859.)

Article 91. The Article 91 charge had two specifications. The first alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant, assaulted MSgt AM, a non-commissioned officer who was in the execution of his office, by chasing him with a knife. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 859.)

The second specification alleged that, on or about 11 May 2022, at or near Misawa Air Base, Japan, Appellant, willfully disobeyed a lawful order from MSgt AM to be tested for COVID-19. The member panel acquitted Appellant of this offense. (R. at 859.)